



Restaurant Brands and Yum! Brands - Taco Bell restaurants

MN-70018

Phase 1 Determination

Acquisition may be put into effect

10 June 2026

1. Determination and statement of reasons

Notified acquisition	Restaurant Brands New Zealand Limited (Restaurant Brands) and Yum! Brands, Inc.'s (Yum) acquisition, via a joint venture (Taco Ventures Pty Ltd (JV Co)), of: 9 Taco Bell restaurants from Restaurant Brands' subsidiary QSR Pty Ltd, and 20 Taco Bell restaurants from Collins Foods Subsidiary Pty Ltd, a subsidiary of Collins Foods Limited (Collins). (together, the Acquisition). Restaurant Brands will control JV Co and hold a 60% interest, while Gardiner Lane Capital, LLC, a wholly owned subsidiary of Yum, will acquire a 40% interest.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	Yum is a NYSE-listed, US-based restaurant company that owns, operates and franchises various fast-food brands and associated restaurants, including KFC, Pizza Hut and Taco Bell. In Australia, Yum holds equity in and operates around 70 KFC restaurants but does not operate or hold equity in any Taco Bell or Pizza Hut restaurants. Restaurant Brands is a Yum corporate franchisee that operates 9 Taco Bell restaurants and 74 KFC restaurants in New South Wales. Collins is an ASX-listed Australian fast-food corporation that owns and operates 294 KFC restaurants and 20 Taco Bell restaurants in Australia, under franchise arrangements with Yum.
Overlap between the parties	Yum, Restaurant Brands and Collins are all active in the operation of quick service restaurants in Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings.

	• The market share aggregation arising from the Acquisition is estimated to be low because JV Co's ultimate shareholders (Restaurant Brands and Yum) have similar equity interests in competing quick service restaurants as the current owners of the Taco Bell restaurants. • JV Co would continue to face competition from many alternative quick service restaurant chains.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**